▼ VIEWPOINT

FOR A LOWER AGE OF CONSENT

Instead of moral panics over sex, we should prioritise the health and safety of adolescents in consensual relationships



BY MANJIMA BHATTACHARJYA

The age of consent, or the age at which a person's consent to sexual activity is valid in law, has a long, eventful history in India. Over 165 years, it moved from the age of 10 to 12 to 16, where it remained for about 73 years. Then, in 2012, the Protection of Children from Sexual Offenses Act (POCSO) was passed. Baked into the law was the definition of a child as anyone below 18, and any sexual activity under this age was deemed a crime. The law thus raised the age of consent, without discussion or explanation, from 16 to 18. At best, it was a hardline expression of concern for children's safety. At worst, a moral stance that aligned age of consent with age at marriage, signposting the invalidity of premarital sex.

Over the past decade, evidence has shown that the impact of this move has predominantly been the criminalisation of consensual sex between adolescents, used by their families to punish rebellious teens who fall in love and transgress caste, class, religious or social norms. A public interest litigation, led by senior advocate Indira Jaising, recently brought these submissions before the Supreme Court, asking it to read down the statutory age of consent from 18 to 16.

This comes as a long-due and welcome move. The raised age of consent has not only criminalised boys as 'rapists' in consensual relations, it has resulted in brutal natal family violence, denied young people access to sexual health services and compounded the culture of silence and fear around sexuality.

Taking a stand that the age of consent should be brought down to 16 does not diminish the commitment to protect children from abuse. Instead, it would acknowledge the fact that sexual activity exists amongst adolescents and create a less fearful space to build systems responsive to these needs. National Family Health Survey (2019-21) data shows that young people across urban and rural areas are involved in sexual activity from the age of 15 onwards. The age of consent varies across countries, with many at 16 or below. It is currently 18 in Nepal and 16 in Sri Lanka. The sexualisation of culture as well as the influence of the internet and social media have changed sexual mores and increased permissiveness, albeit unevenly. What we need is the implementation of sex-positive sex education in private and government schools, and easy availability of contraception and information to youth. Reducing the age of consent could reduce or manage teen pregnancies due to safer access to contraception and abortion.



Illustration by RAJ VERMA

WE MUST LOOK BEYOND SEX TO QUESTIONS OF CONSENT, ADOLESCENCE AND SHAME TO CREATE AN ENVIRONMENT OF INSTITUTIONAL SUPPORT

It would also force us to look beyond sex at questions of consent and adolescence. How can we support young people to understand and articulate consent, something that is so difficult given the social stigma and taboos around premarital sex, especially the shaming that society accords to girls who say yes to sex? Shame unfortunately cannot be banned, but a reduced age of consent could lighten the cloud of confusion and shame surrounding sex.

Sex, in fact, is a red herring. It becomes the thing around which anxieties converge, blurring the focus on other important elements. Rather than the exceptionalism of sex, it is more useful to look at the exceptionalism of adolescents. Adolescence, increasingly an area of study, especially the 16-18 age group, is a period that needs attention differently from children requiring protection at younger ages. Reducing the age of consent could compel us to apply an adolescent-friendly lens to important institutions, be it education, health or justice. In practice, adolescent girls who approach the police station or hospitals for sexual concerns encounter judgement and blame. We don't need hardline, stone-jawed laws designed to discipline young people to express our protective impulse for them. We need to do the hard work of creating systems that listen to—and believe—them. ■

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